

TELOSscope

Benjamin contra Schmitt: A Reappraisal of Agamben through "Critique of Violence"

By [Erik Pomrenke](#) · Tuesday, September 26, 2017

As an occasional feature on TELOSscope, we highlight a past *Telos* article whose critical insights continue to illuminate our thinking and challenge our assumptions. Today, Erik Pomrenke looks at Adam Kotsko's "[On Agamben's Use of Benjamin's 'Critique of Violence'](#)" from *Telos* 145 (Winter 2008).

"On Agamben's Use of Benjamin's 'Critique of Violence'" represents an illuminating attempt by Adam Kotsko to reassert the primacy of Walter Benjamin over Carl Schmitt in Giorgio Agamben's work. These two thinkers serve alongside Heidegger, Aristotle, Foucault, and Arendt as the center of Agamben's genealogy of bare life; as such, configuring this constellation correctly is of signal importance to the reception of Agamben's *Homo Sacer* project. Kotsko contends that Benjamin's primacy is both a theoretical and chronological matter.

Many concepts of central importance to Agamben's thought can be traced directly to Benjamin's esoteric essay "Critique of Violence." Perhaps the most significant is mere life as the bearer of juridical violence, but other concepts such as the decision as metaphysical category, divine violence as sovereign violence, and the sacredness of life also occupy central positions in Agamben's thought. It is telling that many of these concepts seem already cross-pollinated by Schmitt, but Kotsko claims that this symptomatic of Agamben's privileging Schmitt over Benjamin. Indeed, sovereignty barely plays a role in the essay except for the cryptic ending: "Divine violence, which is the sign and seal but never the means of sacred execution, may be called sovereign violence."^[1]

The "exceptional case" is given a similarly problematic genealogy by Agamben. It originates from Benjamin's eighth thesis in "On the Concept of History":

The tradition of the oppressed teaches us that the "emergency situation" in which we live is the rule. We must arrive at a concept of history which corresponds to this. Then it will become clear that the task before us is the introduction of a real state of emergency; and our position in the struggle against Fascism will thereby improve. Not the least reason that the latter has a chance is that its opponents, in the name of progress, greet it as a historical norm.—The astonishment that the things we are experiencing in the 20th century are "still" possible is by no means philosophical. It is not the beginning of knowledge, unless it would be the knowledge that the conception of history on which it rests is untenable.^[2]



Agamben's reading insists on a notion of the exception that cannot be attributed to Benjamin, as it is "only after Schmitt's definition has been asserted does Benjamin's oft-repeated dictum that the state of exception has become the rule come on the scene as an apparent supplement." Benjamin explicitly states that bringing about this state of exception is central to the struggle against fascism, yet Agamben, via Schmitt, will insist on its already being contained within fascism.

Agamben's work *State of Exception* fares better than *Homo Sacer*, yet it still suffers from fundamental problems: "In *State of Exception*, the argument is considerably better documented and more nuanced, but despite the claim that Benjamin's 'Critique of Violence' directly affected the argument in Schmitt's *Political Theology*, Agamben still allows Schmitt to control the terms of the debate." These problems naturally pose the questions: "Was Schmitt right all along? Does Benjamin fail to add anything other than a diagnosis that allows us to see precisely what was always at stake in Schmitt's concept of sovereignty?" The answer, for Kotsko, is a resounding "no."

Benjamin's theoretical priority is also coincident with his chronological priority for Kotsko. As 'Critique of Violence' was composed in 1920, it is unfair for Agamben to apparently suggest in *Homo Sacer* that Benjamin may have had access to Schmitt's 1922 *Political Theology*. Though Agamben seems to reverse this claim in *State of Exception* and concede that *Political Theology* was instead a response to Benjamin, a Schmittian prejudice nonetheless pervades Agamben's work. Against this tendency, Kotsko writes:

before he was even able to read *Political Theology*, Benjamin developed a position of his own on the relationship between law and violence, and once he had access to Schmitt's theory of sovereignty, he did not, as Agamben presents it, carefully stay a hair's breadth away from it—rather, he decisively rejected it. All this indicates that for Benjamin, sovereignty was not the central concept for the analysis of juridical violence, and therefore Agamben's attempt to follow through on Benjamin's account of the "essential link between bare life and juridical violence" by importing Schmitt's conceptual scheme is highly questionable at best.

As much of Kotsko's argument revolves around Agamben's refusal to read Benjamin on his own terms, a condensed account of Benjamin's notoriously obscure text is called for. Broadly, 'Critique of Violence' is an attempt to configure violence (*Gewalt*) with law (*Recht*) and justice (*Gerechtigkeit*). The relationship between *Gewalt* and *Recht* is defined by important sets of oppositions: natural and positive law, law-making and law-preserving violence, and divine and mythic violence. Although "natural law that regards violence as a natural datum is diametrically opposed to that of positive law,"^[3] the two theories still share the fundamental assumption that "just ends can be attained by justified means, justified means used for just ends."^[4] Benjamin wants to push beyond this merely instrumental account of violence and to assess the means of violence purely, outside consideration of their ends.

This post-instrumental view of a pure violence is meant to explode the mythic paradigm of violence, which dialectically balances law-making and law-preserving violence. Criminal violence, for instance, constantly threatens to become law making if it is not met by law preserving violence:

The law governing [this] oscillation rests on the circumstance that all law-preserving violence, in its duration, indirectly weakens the lawmaking violence represented by it, through the suppression of hostile counter-violence. This lasts until either new forces or those earlier suppressed triumph over the hitherto lawmaking violence and thus found a new law, destined in its turn to decay.^[5]

Benjamin understands the end of mythic violence by taking up Sorel's distinction between a political general strike and the proletarian general strike. The former aims to instrumentally extract concessions without fundamentally changing the structure of

power, whereas the latter strives for nothing less than the abolition of the state and its institutions as such. Such violence is divine in that it does not strive instrumentally toward an end, but instead toward a revolutionary purity, which “deposes” the connection between law and violence.

The myth of Niobe is given as the example for mythic violence. The retribution of Apollo and Artemis is not economically commensurate with Niobe's pride and cannot simply be construed as punishment for infringement upon the law. Their retribution is instead the affirmation of the force of law-making violence itself. When law-making ought to become law-preserving, the rotten, or perhaps empty, core of mythic legal violence is revealed as violent domination for its own sake—a pure assertion of a force of law which only enforces itself.

Revolutionary and divine violence is needed to break through mythic violence: “On the breaking of this cycle maintained by mythical forms of law, on the suspension of law with all the forces on which it depends as they depend on it, finally therefore on the abolition of state power, a new historical epoch is founded.”^[6] This new historical epoch is both messianic and political, and as such represents a compelling intersection of Benjamin the Jewish theologian, and Benjamin the Marxist critic. In Kotsko's account, “Agamben very quickly moves to set sovereign violence in relationship to divine violence, eliding mythical violence altogether.” In his haste to conflate divine and sovereign violence, a full account of the dialectic oscillation of mythic violence is neglected.

Addressing this neglect, Kotsko focuses on police violence as a paradigmatic case of juridical violence and as an opportunity to complicate Agamben's eagerness to read Benjamin in terms of Schmitt. Police violence “is lawmaking, for its characteristic function is not the promulgation of laws but the assertion of legal claims for any decree, and law-preserving, because it is at the disposal of these ends. . . . Its power is formless, like its nowhere tangible, all-pervasive, ghostly presence in the life of civilized states.”^[7] This formlessness and anonymity establishes Benjamin's notion of police violence in stark contrast to Schmitt's sovereign exception: “on the one hand, a ghostly apparition haunting the everyday; on the other, a well-defined state grounded in a legitimate decree.”

Kotsko's plea is a fundamentally humble one—to let Benjamin speak for himself. Such a reading allows for a more modern and revolutionary account of juridical violence than Schmitt may be able to provide, and may even harmonize more deeply with Agamben's “idea of an inner solidarity between democracy and totalitarianism.” Working directly with Benjamin could also further Agamben's attempts to understand police power by acting as a natural segue to the thought of Foucault and Arendt. Despite Agamben's theoretical prominence, his work could surely be enriched by responding to Kotsko's critique. To understand Benjamin on his own terms can only deepen our understanding of law and violence.

Notes

1. Walter Benjamin, *Reflections*, ed. Peter Demetz, trans. Edmund Jephcott (New York: Schocken Books, 2007), p. 300.
2. Walter Benjamin, “On the Concept of History,” trans. Dennis Redmond, Marxists Internet Archive.
3. Benjamin, *Reflections*, p. 278.
4. Ibid.
5. Ibid., p. 300.
6. Ibid.
7. Ibid., p. 287.

Topics: [Carl Schmitt](#), [Giorgio Agamben](#), [history](#), [Law](#), [myth](#), [TELOSthreads](#), [violence](#), [Walter Benjamin](#)

1 comment to Benjamin contra Schmitt: A Reappraisal of Agamben through "Critique of Violence"

eric d. meyer

October 14, 2017 at 2:35 am

I frankly do not see how either Walter Benjamin's mystification of a 'pure,' 'divine,' 'revolutionary' violence, or Giorgio Agamben's repeated recourse to Benjamin's mystification of revolutionary violence, can be supported as valid methods of political opposition to the so-called 'juridical' violence of the sovereign state. Certainly, as Agamben wrote in his essay, 'Sovereign Police,' there is a 'zone of indistinction' between the sovereign rule of law and its enforcing police violence, which perpetually threatens to collapse the sovereign state and its rule of law into either totalitarianism or anarchy. But in a constitutional democracy, there are also strict limits placed by the sovereign rule of law on the employment of police violence, which is the crucial distinction between democracy and either totalitarianism or anarchy; and exponents of civil and human rights necessarily must defend those strict limits on sovereign violence, as, for example, in opposing the police shootings of presumptively innocent suspects which are currently a major problem in the USA. Although I deeply appreciate Benjamin's and Agamben's critique of the sovereign violence of totalitarian states, whether fascist or communist, I do not see that recourse to a self-proclaimed anarchist violence or divine, revolutionary violence is any alternative to the sovereign violence Benjamin and Agamben oppose. I suggest that readers of this article check out Agamben's first published article, which I have referenced in a review of Agamben's 'Stasis' in *Marxism & Philosophy Review of Books*. And please excuse me for citing myself, for sheer laziness: "Agamben's first published article, 'On the Limits of Violence,' recently republished in *Towards the Critique of Violence* (ed. Brendan Moran and Carlo Salzani, London, Bloomsbury, 2015: 231-238) ... identifies "revolutionary violence" against the Western State with the "sacred violence" of sacrificial religions, in which the self-sacrificial martyr (the anarchist terrorist, the suicide bomber) devotes her- or himself to self-destruction in the righteous cause of religious salvation or political liberation, without knowing precisely what she or he is sacrificing her, or himself, for. 'Revolutionary violence,' Agamben argues, 'is a violence that negates the self [even] as it negates the other; it awakens a consciousness of the death of the self, even as it visits death upon the other' (236), in a self-destructive act of self-sacrificial martyrdom which can only be called "revolutionary suicide." I would suggest that Agamben's readers should reflect upon this article before endorsing either Benjamin's or Agamben's recourse to a supposed 'pure,' 'divine,' 'revolutionary' violence. EDM